

Irshad Hussain v. Executive Engineer, Vidyut Nagariya Vitaran Khand

Allahabad High Court · Division Bench · 18 January 2016 · Writ-C No. 13970 of 2011 · **Dismissed as infructuous; interim order discharged.**

HEADNOTE

Writ concerning portability of an electricity connection within the same circle, earlier adjourned so counsel could locate a Supply Code provision, dismissed as infructuous when listed as an infructuous case and the petitioner remained unrepresented; no merits ruling.

FACTUAL SUMMARY

Irshad Hussain petitioned the High Court against the Executive Engineer, Vidyut Nagariya Vitaran Khand, over portability of an electricity connection within the same circle. On 9 March 2011 the Court adjourned the writ so counsel could locate any Supply Code provision on such portability. Years later the matter was listed as an infructuous case. On 18 January 2016, with the petitioner unrepresented even on a revised call, the Court dismissed the writ as infructuous and discharged any interim order.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

infructuous listing

HOLDING

Listed as an infructuous case, the writ is dismissed as infructuous in the petitioner's absence even after a revised call; any interim order stands discharged. No Supply Code provision on portability of a connection in the same circle was identified or construed. ¶ 2

PRINCIPLE TAGS

writ-dismissed-as-infructuous-with-liberty-to-move-afresh

Writ concerning portability of an electricity connection within the same circle, earlier adjourned so counsel could locate a Supply Code provision, dismissed as infructuous when listed as an infructuous case and the petitioner remained unrepresented; no merits ruling. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY SUPPLY CODE PROVIDES FOR PORTABILITY OF AN ELECTRICITY CONNECTION WITHIN THE SAME CIRCLE

Adjourned on 9.3.2011 to locate such a provision; never decided on merits. ¶ 1